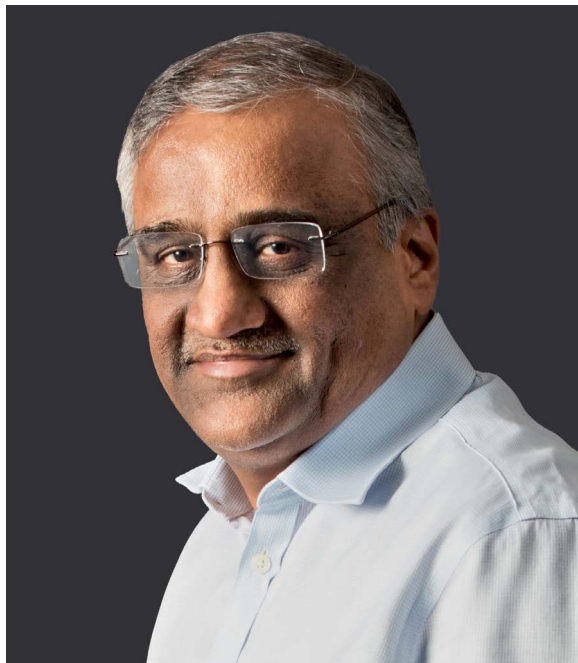




KISHORE BIYANI,
FOUNDER & GROUP CEO, FUTURE GROUP

venture partner in More Retail with Samara Capital (Amazon holds 49%, Samara holds the rest), but Future Retail would have given it scale. According to Neil Shah, Research Vice President and Partner at Counterpoint Research, it must be viewed in the backdrop of increasing spending power and more brand affinity driving the

premiumisation trend. "Clearly, Amazon wants to grow quickly in grocery and fashion since both are huge in terms of the consumer's wallet share. In that sense, not getting Future Retail is a setback." Plus, Reliance itself has grown aggressively with Reliance Mart, Reliance Digital and its portfolio of international brands. Other

companies, too, have this space in their cross hairs. Manish Tiwary, Country Manager at Amazon India, says the matter is still in the courts and the company won't say anything further.

From a legal standpoint, Arush Khanna, Partner at Numen Law Offices, says Amazon's proposed acquisition has suffered several regulatory setbacks. The Competition Commission of India (CCI) stated that Amazon failed to disclose the interconnected set of agreements that effectively gave it control over Future Retail. Amazon then appealed this order before the National Company Law Appellate Tribunal (NCLAT). "The CCI's order imposing a penalty of ₹202 crore on Amazon for non-disclosure was upheld by the NCLAT in 2022. Whilst the recovery of penalty has been stayed by the Supreme Court, Amazon would have

to await the final decision of the apex court to ensure it has a clean slate in its proposed acquisition," he explains.

The most important issue relates to time and Khanna maintains that given the heavy docket of caseload before the Supreme Court, it is difficult to expect a speedy outcome of the regulatory hurdles imposed by the CCI on Amazon. "Meanwhile, in view of the ongoing insolvency proceedings of Future Retail, nothing stops the Reliance group from filing a resolution plan for the revival and acquisition of the company," says Khanna, adding that this will create further push-back for Amazon as its application for intervention before the National Company Law Tribunal (NCLT) in Mumbai has been dismissed. The chances of Amazon acquiring Future Retail, therefore, seem bleak. **BT**

them ahead regarding PIN code optimisation, setting up logistics, routing algorithms, and selling fresh groceries," Bindra says.

Amazon has joined the quick commerce story through Amazon Fresh, using its tech and infrastructure to offer products at specified time slots. With Swiggy's Instamart, Zomato's Blinkit and

Zepto in the market, it is becoming extremely competitive.

TECHNOLOGY THE GROWTH DRIVER

Amazon and Flipkart dominate the e-commerce landscape. While Amazon's growth has been organic, Flipkart has been much more aggressive. According to Shah, Flip-

kart has been a local success story that is more mainstream and localised. "It has made diverse bets and gone through some key changes since Amazon's entry, helping it to keep ahead. Acquisitions such as eBay (its India operations), Myntra, Jabong, PhonePe, and Cleartrip, among others, have helped Flipkart get an edge in the fashion and